



Legal Assist Paralegal Services
Licensed Paralegals in the Province of Ontario

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Cash-for-Keys Negotiation Retainer

Strictly Limited Scope — Tenant Representation

*This is a **limited-scope retainer** under Rule 3.02(1.1) of the Paralegal Rules of Conduct. It authorizes negotiation of a private cash-for-keys settlement with the Landlord only. It does **not** authorize any representation at the Landlord and Tenant Board.*

This Retainer Is Not LTB Representation

If the Landlord serves an N-notice (N4, N5, N6, N7, N8, N12, N13) or files any application at the Landlord and Tenant Board, this Retainer ends automatically on the date of service or filing. You will need to sign a new, separate retainer to be represented at the LTB.

No paralegal-client relationship is formed and no work is commenced until this Agreement is signed and accepted by both parties.

Prepared For
Lisa and Denis Gagnon

Date Prepared
May 28, 2026

Matter Type
LTB — Cash-for-Keys (Tenant Side)

Acting For
Tenant

Fee Model
Contingency — 500.00 from settlement

Licensee of Record

Candice Fogarty

Licensed Paralegal — Law Society of Ontario
Licence No. P21479

In plain English

You are hiring **Candice Fogarty** at Legal Assist Paralegal Services to **negotiate a cash payment from your Landlord in exchange for you voluntarily moving out**. That is all this Retainer covers. If the Landlord refuses to negotiate, files at the LTB, or serves you with an eviction notice, this Retainer ends and you will need a different retainer. You pay **nothing up front**. If a settlement is reached, **500.00** comes out of the settlement and the rest is yours. If no settlement is reached, you owe nothing.

Legal Assist Paralegal Services is licensed and insured by the Law Society of Ontario (LSO). This Agreement is governed by the laws of the Province of Ontario.

Document

LTB-CFK-20260528

Version: LTB Cash-for-Keys Retainer v1.0

Last updated May 28, 2026

END OF COVER — CONTINUE TO SECTION 1

1. Parties & Identification

This Retainer Agreement (the "**Agreement**") is made between **Lisa and Denis Gagnon** (the "**Tenant**" or "**Client**") and **Legal Assist Paralegal Services**, acting through **Candice Fogarty**, Licensed Paralegal (Law Society of Ontario), Licence No. P21479 (the "**Paralegal**" or "**we**").

Tenant (Client)

Full Legal Name	Lisa and Denis Gagnon	Email	lisamarieg2004@gmail.com
Phone	5198305834		
Rental Unit Address	60 Castlewood Place, Cambridge, Ontario, N1R 8K6		
Mailing Address (if different)	60 Castlewood Place		

Opposing Party (Landlord)

Landlord Name	
Landlord's Representative	MV Mortgage Team - Toronto Barrie Mortgage Agents

Tribunal & Jurisdiction

The rental unit identified above is located in the Province of Ontario. The Tenant's tenancy is governed by the *Residential Tenancies Act, 2006*, S.O. 2006, c. 17 (the "**RTA**"), and any proceeding between the parties relating to the tenancy would ordinarily be heard by the **Landlord and Tenant Board** (the "**LTB**" or "**Board**"). The negotiation contemplated by this Retainer is **private** and is **not** a Board proceeding (see Section 2).

File Reference

File Opened	May 28, 2026
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END OF SECTION — NO FURTHER CONDITIONS

2. Nature of the Matter & Definitions

What “cash for keys” means

“Cash for keys” (also called a “buy-out” or “move-out incentive”) is a **private, negotiated payment from the Landlord to the Tenant** in exchange for the Tenant’s **voluntary surrender of possession** of the rental unit and a **mutual release** of all claims arising out of the tenancy. The bargain is normally executed by a written agreement variously called a:

- **Mutual Release and Termination Agreement**, or
- **Form N11 — Agreement to End the Tenancy** together with a written side agreement recording the cash payment and mutual release.

What cash for keys is NOT

Cash for Keys Is a Private Deal — NOT an LTB Order

A cash-for-keys settlement is **not** an order of the Landlord and Tenant Board. It is **not** supervised, approved, or enforced by the Board. It is **not** a Board-mediated settlement. It is a **private contract** between the Tenant and the Landlord. If the Landlord refuses to honour the agreement after signing, enforcement may require separate Small Claims Court proceedings, which are **not** included in this Retainer (see Section 4).

Why landlords pay cash for keys

Landlords offer cash for keys for a variety of reasons — including, for example, where they wish to renovate, demolish, convert, or sell the unit, or where they wish to avoid the time, cost, and risk of an LTB application. The Paralegal makes no representation about the Landlord’s motivation, and the Tenant should not assume the Landlord has any particular legal entitlement to possession.

Definitions used in this Retainer

- “**Settlement**” means a written, signed cash-for-keys agreement (Mutual Release / Termination Agreement, or an N11 with a written side agreement) between the Tenant and the Landlord.
- “**Settlement Proceeds**” means the cash actually paid by the Landlord to the Tenant (or to Legal Assist’s trust account on the Tenant’s behalf) under the Settlement.
- “**Floor**” means the minimum dollar amount the Tenant has set as the lowest acceptable Settlement (see Section 5).

END OF SECTION — NO FURTHER CONDITIONS

3. Scope of Retainer (Strictly Limited)

LIMITED SCOPE — RULE 3.02(1.1)

This Retainer is strictly limited to negotiating a cash-for-keys settlement between the Tenant and the Landlord. Nothing more.

This is a **limited-scope retainer** under **Rule 3.02(1.1)** of the *Paralegal Rules of Conduct*. By signing, the Tenant acknowledges that the Paralegal's services are limited to the narrow scope set out below and that the Tenant remains responsible for everything else (including any LTB proceeding and any court matter), subject to retaining a paralegal or lawyer separately.

What this Retainer DOES include:

- **Communications with the Landlord** and the Landlord's representatives (property manager, real-estate agent, lawyer or paralegal acting for the Landlord) for the purpose of negotiating a cash-for-keys settlement.
- **Drafting** initial settlement offers and counter-offers on behalf of the Tenant; **reviewing** offers and counter-offers received from the Landlord; and **advising** the Tenant on the strengths and weaknesses of each offer.
- **Drafting or reviewing the final Mutual Release and Termination Agreement** (or N11 with a written side agreement) recording the agreed settlement, the agreed move-out date, the mutual release of all tenancy claims, and any other agreed terms.
- **Coordinating** the mechanics of payment (deposit of Settlement Proceeds into Legal Assist's trust account, or direct payment to the Tenant, as agreed) and the mechanics of move-out (return of keys, walk-through, utility shut-off coordination if applicable).
- **One (1) follow-up** with the Landlord or the Landlord's representative after signing the Settlement to confirm payment is in transit.

The detailed list of services that this Retainer does NOT include — including all LTB representation — appears in Section 4 (Scope Exclusions).

END OF SECTION — NO FURTHER CONDITIONS

4. Scope Exclusions (What this Retainer Does NOT Cover)

NOT INCLUDED — READ CAREFULLY

This Retainer covers cash-for-keys negotiation ONLY.

Anything else — that is, anything not directly related to negotiating and concluding a cash-for-keys agreement between the Tenant and the Landlord — is excluded from this Retainer and is not authorized.

For greater certainty, and without limiting the breadth of the foregoing exclusion, items that are not covered include (but are not limited to):

- any representation, attendance, application, or response at the Landlord and Tenant Board;
- drafting, reviewing, serving, or responding to any LTB notice or application (including any N-form or L-form / T-form);
- court proceedings of any kind;
- any matter unrelated to the cash-for-keys negotiation (for example: rent abatement, repairs, harassment, maintenance claims, deposit interest, or any other tenant-side claim under the RTA);
- tax, accounting, financial, immigration, or independent legal advice; and
- logistical support (housing search, movers, storage, etc.).

If the Tenant requires assistance with anything outside the scope of this Retainer, a separate written retainer is required. Any tenant-side claims that exist but are not negotiated as part of the cash-for-keys settlement may be released forever by signing the final Mutual Release — see Section 9.

AUTOMATIC TERMINATION TRIGGER

If, at any time during the term of this Retainer, the Landlord (a) **serves the Tenant with any LTB notice, OR (b) files any application at the LTB against the Tenant, OR (c) commences any court proceeding** against the Tenant, **this Retainer terminates automatically** as of the date of service or filing. The Tenant must engage Legal Assist Paralegal Services **or another licensed representative** under a **separate written retainer** for any LTB or court matter. No fee is owed under this Retainer on automatic termination unless a Settlement was already in place; see Section 6.

END OF SECTION — NO FURTHER CONDITIONS

5. Settlement Authority and the Tenant's Floor

The Tenant retains **final authority** over whether to accept or reject any cash-for-keys offer. The Paralegal's role is to **recommend**; the Tenant's role is to **decide**.

TENANT'S FLOOR — MINIMUM ACCEPTABLE SETTLEMENT

5000.00

The amount above is the **Floor** — the **minimum dollar amount** the Tenant will accept as a cash-for-keys Settlement, set by the Tenant at the time of signing this Retainer. The Tenant has set this Floor in light of (among other things) the Tenant's expected moving costs, expected rent differential at the next rental, expected time required to find replacement housing, and any other personal or financial considerations.

The Paralegal makes no representation about whether the Floor is the "right" amount in the circumstances; the Floor is the Tenant's decision.

Authority Granted to the Paralegal

- The Paralegal is **authorized**, without further consultation, to communicate offers, counter-offers, and proposed settlement terms to the Landlord **at or above the Floor**.
- The Paralegal is **NOT authorized** to accept, agree to, recommend acceptance of, or sign on behalf of the Tenant **any offer below the Floor**, without the Tenant's **express written consent**. Email confirmation from the Tenant is sufficient for this purpose.
- The Paralegal will **report every offer received** from the Landlord to the Tenant, regardless of whether the offer is at, above, or below the Floor. Reporting will be in writing (email) within one (1) business day of receipt.
- The Tenant may **revise the Floor at any time** by written notice to the Paralegal. A revision is effective when received in writing by the Paralegal.

Final Authority Always Rests with the Tenant

Even where an offer is at or above the Floor, the Tenant retains the right to reject the offer or to direct the Paralegal to counter-offer at a higher amount. The Paralegal will not sign any Settlement on the Tenant's behalf without the Tenant's express written instruction to do so for that specific Settlement.

END OF SECTION — NO FURTHER CONDITIONS

6. Fee Structure (Contingency)

CONTINGENCY FEE — BY-LAW 4 / RULE 5.01

Total Fee

500.00

Inclusive of HST. Payable ONLY out of cash-for-keys settlement proceeds actually received from the Landlord.

No settlement, no fee

If no Settlement is reached, or if a Settlement is reached but the Landlord fails to pay any of the agreed amount, the Tenant owes Legal Assist **nothing** for negotiation work (subject to disbursements actually incurred and the Termination provisions below).

How the fee gets paid

- **Path A — To Trust (preferred):** Landlord pays the full Settlement to Legal Assist's trust account; Legal Assist deducts the 500.00, issues an itemized invoice, and remits the balance to the Tenant within **five (5) business days** of clearance.
- **Path B — Direct to Tenant:** If the Landlord pays the Tenant directly, the Tenant must remit the 500.00 to Legal Assist within **five (5) business days** of receipt and authorizes Legal Assist to issue an invoice enforceable as a contract debt.

Disbursements

Out-of-pocket disbursements (e.g., process server, courier, registered mail) are billed **at cost** in addition to the fee, deducted the same way as the fee. Where no Settlement is reached, the Tenant remains responsible for disbursements actually incurred. The Tenant will be consulted before any disbursement > \$50 where reasonably possible.

Right to negotiate & termination effect

The Tenant may **negotiate** these terms before signing and is encouraged to obtain independent legal advice on this fee arrangement (see Section 9). Termination effect on fee:

- **Tenant terminates before** a Settlement is reached: no fee owed.
- **Tenant terminates after** a Settlement is reached but before payment: 500.00 remains owing (work substantially completed).
- **Automatic termination under Section 4 before** a Settlement is signed: no fee owed.
- **Automatic termination under Section 4 after** a Settlement is signed: 500.00 remains owing.

END OF SECTION — NO FURTHER CONDITIONS

7. Communication and Updates

Primary Contact

Paralegal	Candice Fogarty (LSO #P21479)	Email	candice@legalassist.london
Phone	226-272-5153	Office	226-272-5153 · legalassist.london

Authority to Communicate with the Landlord

The Tenant **authorizes** the Paralegal to communicate directly with the Landlord, the Landlord’s representatives (property manager, real-estate agent), and the Landlord’s lawyer or paralegal (if any), in respect of the cash-for-keys negotiation. Once this Retainer is signed and the Landlord has been notified that Legal Assist acts for the Tenant, the Tenant agrees **not to communicate directly** with the Landlord about the cash-for-keys negotiation without first consulting the Paralegal.

Update Frequency

- The Paralegal will **update the Tenant in writing** (email) on **each substantive offer or counter-offer** received from the Landlord, **within one (1) business day** of receipt.
- The Paralegal will provide a routine status update at least every **fourteen (14) calendar days**, even if no offer activity has occurred, until a Settlement is reached or this Retainer terminates.

Tenant’s Response Time

- The Tenant must respond to any offer review request from the Paralegal **within three (3) business days**. If the Tenant does not respond within that window, the offer may **lapse**, or the Landlord may withdraw the offer, and the Tenant accepts that risk.
- If the Tenant becomes uncontactable for **fourteen (14) consecutive calendar days** despite the Paralegal’s reasonable efforts, the Paralegal may treat the file as inactive and may withdraw under Section 10.

END OF SECTION — NO FURTHER CONDITIONS

8. Confidentiality, Conflicts & File Retention

Confidentiality & Privilege

Communications between the Tenant and the Paralegal are protected by **paralegal-client privilege** and by the Paralegal's duty of confidentiality under **Rule 3.03** of the *Paralegal Rules of Conduct*. The Paralegal will not disclose confidential information without the Tenant's consent, except where disclosure is permitted or required by law or by the Paralegal Rules.

Conflict of Interest Check

The Paralegal has performed a conflict-of-interest check against the Landlord (and any disclosed representative of the Landlord) as of **May 28, 2026**, and confirms that **no conflict** has been identified that would prevent the Paralegal from acting for the Tenant under this Retainer. If a conflict is identified after this Retainer is signed, the Paralegal will disclose the conflict to the Tenant and may withdraw under **Rules 3.04 to 3.05**.

Direct Contact with the Landlord by the Tenant

The Tenant agrees to inform the Paralegal of any direct communication the Tenant has had with the Landlord or the Landlord's representatives about the cash-for-keys negotiation, both before signing this Retainer (to the best of the Tenant's memory) and during the Retainer.

Personal Information & PIPEDA

The Paralegal collects personal information from the Tenant for the limited purpose of providing the services described in this Retainer, meeting record-keeping requirements under By-Law 7.1 and By-Law 9, and meeting applicable tax record-keeping obligations. The Tenant consents to the collection, use, and disclosure of personal information for those purposes.

File Retention

On conclusion of this matter, the Paralegal will retain the closed file for a minimum of **six (6) years** in accordance with LSO best practice and By-Law 9 retention requirements. After that period, the file may be securely destroyed without further notice. Trust account records are retained for the longer period required by By-Law 9.

END OF SECTION — NO FURTHER CONDITIONS

9. Independent Legal Advice (ILA)

You Are Strongly Encouraged to Get Independent Legal Advice Before Signing the Mutual Release

The Tenant is **strongly encouraged** to obtain **independent legal advice** from a lawyer or another paralegal (one who is not acting on this Retainer) before signing the **final Mutual Release and Termination Agreement** (or N11 with side agreement). The Paralegal acting on this Retainer drafted or reviewed the document for the Tenant and therefore cannot serve as "independent" counsel on it.

Why ILA matters here

A Mutual Release is a **final, full, and forever release** of all claims the Tenant has, or may ever have, arising out of the tenancy. By signing it, the Tenant is normally **giving up** any right to bring claims that the Tenant could otherwise have pursued at the Landlord and Tenant Board (e.g., T2 harassment / interference claims, T6 maintenance claims, T1 rebate claims for illegal charges or LMR deposit interest, T3 service-reduction claims) or in court (e.g., damages for breach of the tenancy agreement). Independent legal advice helps ensure that the Tenant understands what claims are being released and whether the Settlement amount is reasonable in the circumstances.

When ILA is especially important

- Where the Settlement amount is **\$5,000 or more**;
- Where the Tenant has, or may have, **existing claims** against the Landlord (e.g., a maintenance dispute, a harassment complaint, illegal charges, withheld LMR deposit interest) that would be released by signing;
- Where the Tenant has, or may have, a potential **bad-faith N12 or N13** claim (RTA s. 57) against the Landlord that would be released;
- Where the Tenant is being asked to sign any term other than the cash payment, the move-out date, and a standard mutual release (e.g., a non-disparagement clause, a confidentiality clause, an indemnity).

Acknowledgement of right to ILA

By signing this Retainer, the Tenant **acknowledges** that the Tenant has been informed of the right to obtain independent legal advice before signing the final Mutual Release, and that the Tenant either has obtained, will obtain, or voluntarily chooses not to obtain such advice.

END OF SECTION — NO FURTHER CONDITIONS

10. Termination of Retainer

Termination by the Tenant

The Tenant may terminate this Retainer **at any time**, for any reason or no reason, by giving the Paralegal **written notice** (email is sufficient). Termination by the Tenant is effective on the date the notice is received by the Paralegal. The fee consequences of termination by the Tenant are set out in Section 6.

Termination by the Paralegal

The Paralegal may terminate this Retainer on **five (5) business days' written notice** to the Tenant, for any reason permitted by the *Paralegal Rules of Conduct*, including without limitation: non-cooperation, failure to provide instructions, conflict of interest identified after engagement, breakdown of trust, threatening or abusive conduct, ethical impossibility, or any other reason permitted under Rule 3.08 of the Rules.

Automatic Termination

This Retainer terminates **automatically**, without notice and without any further act of either party, on the date the Landlord (a) serves the Tenant with any LTB notice (N4, N5, N6, N7, N8, N12, N13, or any other N-form), **OR** (b) files any application at the Landlord and Tenant Board, **OR** (c) commences any court proceeding against the Tenant arising out of the tenancy. On automatic termination:

- The Paralegal will confirm the termination in writing to the Tenant within one (1) business day of becoming aware of the triggering event.
- The fee consequences set out in Section 6 apply.
- If the Tenant wishes to be represented in respect of the LTB or court matter, the Tenant must **sign a new, separate retainer** with Legal Assist Paralegal Services (or with another paralegal or lawyer). The Paralegal will, on request, provide a referral.

Effect of Termination

On termination (for any reason), the Paralegal will (a) cease all work on the file, (b) close out any pending communications with the Landlord with notice that the Paralegal no longer acts, (c) on the Tenant's written request and within a reasonable time, transfer the Tenant's file (or a copy) to the Tenant or to a successor representative, and (d) issue a final account if any amount is owing under Section 6.

END OF SECTION — NO FURTHER CONDITIONS

11. Acknowledgments and Initials

By initialling each box below, the Tenant separately acknowledges and agrees to each of the following statements. Each line is an independent acknowledgment.

Initials Required

- | | |
|-----------------------------------|---|
| <input type="text" value="INIT"/> | I understand this retainer is limited to NEGOTIATING a cash-for-keys settlement only. |
| <input type="text" value="INIT"/> | I understand Legal Assist will NOT represent me at the Landlord and Tenant Board under this retainer. |
| <input type="text" value="INIT"/> | I understand that if the landlord files an application at the LTB or serves an N-form notice, this retainer ENDS and I must sign a new, separate retainer to be represented at the LTB. |
| <input type="text" value="INIT"/> | I understand the fee is 500.00 deducted from any settlement; if no settlement, no fee. |
| <input type="text" value="INIT"/> | I have set a settlement Floor of 5000.00 and I understand the paralegal cannot accept below this Floor without my written consent. |
| <input type="text" value="INIT"/> | I understand I am entitled to independent legal advice before signing the final Mutual Release and that the paralegal who drafted it cannot also be my "independent" advisor on it. |
| <input type="text" value="INIT"/> | I have been given the chance to ask questions and have had this retainer explained to me. |

END OF SECTION — NO FURTHER CONDITIONS

12. Signatures

By signing below, each party confirms agreement to the terms of this Retainer. Electronic signatures are equivalent to wet-ink signatures under the *Electronic Commerce Act, 2000*, s. 11.

Tenant Signature

Lisa and Denis Gagnon

lisamarieg2004@gmail.com

Date: _____

Paralegal Signature

[Paralegal signature on signing]

Candice Fogarty

Licensed Paralegal — Law Society of
Ontario · Licence No. P21479

Date: May 28, 2026